

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS MARCH TERM, A.D. 2025

BEFORE HER HONOR: SIE-A-NYENE G. YUOH CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON-JOHNSON..... ASSOCIATE JUSTICE

Alex Freeman, Momolu S. Freeman, Gene Chandler)
Freeman and Ecelo Freeman, Co-Administrators of the)
Intestate Estate of Alexander B. Mars Jr., of the)
City of Monrovia, Liberia Appellants)
Versus) Appeal

The Intestate Estate of AB Mars by and thru its)
Administrators and Administratrix, Alexander Korkai)
Freeman, Momolu S. Freeman, Ecelo Elaine Freeman)
Gene Chandler Freeman, Marilee B. Dixon, Momolyn)
Dixon and Moice Dixon of the City of Monrovia, Liberia)
..... Appellee)

GROWING OUT OF THE CASE:

Alex Freeman, Momolu S. Freeman, Gene Chandler)
Freeman and Ecelo Freeman, Co-Administrator of the)
Intestate Estate of Alexander B. Mars Jr., of the)
City of Monrovia, Liberia Movants)
Versus) Motion to Intervene

The Intestate Estate of AB Mars by and thru its)
Administrators and Administratrix, Alexander Korkai)
Freeman, Momolu S. Freeman, Ecelo Elaine Freeman)
Gene Chandler Freeman, Marilee B. Dixon, Momolyn)
Dixon and Moice Dixon of the City of Monrovia, Liberia)
..... Appellee)

Heard: June 8, 2025

Decided: August 14, 2025

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT

The appellee, the Intestate Estate of AB Mars, through its administrators/trixes, Alexander Korkai Freeman, Momolu S. Freeman, Ecelo Elaine Freeman, Gene Chandler Freeman, Marilee B. Dixon, Momolyn Dixon, and Moice Dixon, filed a Summary Proceeding to Recover Possession of Real Property against forty (40) defendants, including Spirit of Truth Ministries International, George D. Backer, Real Aqua Vision Industries, New Covenant Church, and Agape Prophetic Fellowship,

among others. The appellee stated in their complaint that the property occupied by the defendants is part of the estate of AB Mars; that the defendants are occupying the property without lawful right; and therefore, the appellee requests the court to evict the defendants. The appellee attached a letter of administration issued by the Monthly and Probate Court to Alexander Konkai Freeman, Momolu S. Freeman, Ecelo Elaine Freeman, Gene Chandler Freeman, Marilee B. Dixon, Momolyn Dixon, and Moice Dixon, appointing them as administrators/trixes.

The records show that out of the forty (40) defendants sued and served with the writ of summons along with the appellee's pleadings, many of the defendants in their response annexed administrator deeds from Alexander Konkai Freeman and Ecelo Elaine Freeman, appellants herein and co-administrators of the Intestate Estate of AB Mars, Sr., as their grantors.

Pending the resolution of the Summary Proceedings, the appellants, Alexander Konkai Freeman and Ecelo Elaine Freeman, filed a motion to intervene. In their motion, the appellants stated that they are co-administrators of the Intestate Estate of AB Mars, Sr., and that, as co-administrators, they have no knowledge of or consented to the filing of the Summary Proceedings initiated by the appellee, who are also co-administrators. They also noted that with the approval of the other co-administrators, they obtained a court order of sale and sold some of the estate's property. In certain cases, they leased parts of the estate to facilitate payments for legal fees associated with ongoing court cases, and the benefits from these transactions were shared among the estate's beneficiaries. The appellants reported these activities in a filing with the Monthly and Probate Court when accounting for the estate. Additionally, the appellants argued that, as grantors/lessors to the defendants, they are legally obligated to protect the defendants.

In its resistance, the appellee averred that the interveners and appellants herein are all petitioners in the Summary Proceedings action, and that the appellees are taken aback and wondering what the interveners are trying to achieve; that at no time did the interveners pay legal fees on behalf of the estate; that there was no petition for closure or proper accounting before

the probate court. Additionally, the appellee averred that if the interveners sold, leased, or rented to the defendants, the onus is on the defendants to file their returns and show their leasehold rights or title deeds issued by the interveners. Furthermore, the interveners cannot intervene because, as a matter of law, they have passed title and cannot represent the defendants. Finally, the interveners' motion is not supported by Chapter 5, Section 5.61 of the Civil Procedure Law governing motions to intervene.

In disposing of the motion to intervene and its resistance, the trial judge held that when there are more than two administrators of an intestate estate, only the majority administrators can legally contract or convey property on behalf of the estate; that there is no evidence the interveners were authorized to act on behalf of the intestate estate, and the fact that the letters of administration issued by the Probate Court list the names of the interveners and the respondents as administrators means the interveners are considered plaintiffs in the summary proceedings.

The appellants filed exceptions to, and announced an appeal from, this final ruling to this Court, and submitted a four-count bill of exceptions for consideration. A review of the appellants' bill of exception shows that only count three (3) presents a relevant issue requiring this Court's attention; specifically, whether the trial judge erred in denying the appellants' motion to intervene and in ordering that the appellants be made party plaintiffs in the proceedings.

We shall proceed to address this lone contention of the appellants.

This Court has held that "A person whose interest in the matter of litigation is not direct or substantial, but indirect, inconsequential, remote, conjectural or contingent, cannot intervene" *Abi-Jaoudi et al v Monrovia Tobacco Corp.* 36 LLR 156, 164 (1989). *Civil Procedure Law Revised Code: 1:5.61*, which provides that upon timely application, any person shall be allowed to intervene in an action:

(a) When a statute of the Republic of Liberia confers an unconditional right to intervene; or

(b) When the representation of the applicant's interests by existing parties is or may be inadequate and the applicant is or may be bound by a judgment in the action; or

(c) When the applicant is so situated as to be adversely affected by a distribution or other disposition of property in the custody or subject to the control or disposition of the court or of an officer thereof.

As reflected in the records, both the appellants and the appellees obtained one letters of administration to serve as the administrators/trixes of the intestate estate of AB Mars. The appellees, on behalf of the estate, filed summary proceedings to recover possession of real property, relying on the strength of the letters of administration issued for the management of the estate. While the summary proceedings was pending, the appellants, as co-administrators, filed a motion to intervene on behalf of the defendants, claiming that as co-administrators they placed the defendants on the property relying on the authority of the same letters of administration relied upon by the appellees and a court decree of sale issued by the probate court to the appellants.

The management of an intestate estate with multiple administrators involves a shared goal: to protect and defend the estate's property. The decision to initiate legal action against intruders is an obligation and must be made by the estate's administrators. In the appellees' brief filed before this Court, the appellees argued that the appellants transferred part of the estate property to some of the defendants, as evidenced by deeds presented by the defendants with the appellants' names as grantors. They proposed that those defendants be dropped from the suit, leaving the other defendants to account for their occupancy of the estate's property. This approach seems rational and fair, as it is based on the same letters of administration and court decree of sale that both parties relied upon.

As to the other defendants to whom the appellants allege that they leased or rented some of the properties, the appellant did not annexed any instrument evidencing authority from the Monthly and Probate Court or the acquiescence of the other co-administrators for such action. It is provided for under Section 117.1.2(d) of the Decedents Estates Law that for an

administrator to enter into a lease agreement for a property under his administration, a decree must be obtained from a monthly and probate court authorizing such alienation of the estate's property. Moreover, as co-administrators, the appellants had a duty to obtain the consent of the other administrators before exposing of the estate's property to rent. This not having been done, it cannot be said legally that the alleged action of the appellants in leasing and renting the estate's property without authority of the Probate Court and consent of the other administrators considered as acting under the letters and intent of the letters of administration issued to the appellants as co-administrators. In the instant case, the appellants, who are co-administrators of the Intestate Estate of AB Mars, cannot intervene in a matter instituted by the other administrators standing on the strength of the letters of administration issued by the probate court to summarily evict occupants from the estate; hence, the trial court committed no reversible error when it denied the appellants' motion to intervene as administrators.

WHEREFORE AND IN VIEW OF THE FOREGOING, the ruling of the trial court confirming the magisterial court's denial of the motion to intervene is confirmed. The Clerk of this Court is hereby ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction and give effect to the Judgment of this Opinion. Costs are ruled against the appellants. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR KUKU Y. DORBOR APPEARED FOR THE APPELLEES. COUNSELLORS TOMMY N. DOUGBA AND THOMPSON JARGBA APPEARED FOR THE APPELLANTS.